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Case Number: 25STCV15242 Hearing Date: July 29, 2026 Dept: 735

Gerami, et al. v. Montebello

Unified School District

Motion for Judgment on the Pleadings

BACKGROUND

This is a breach of contract arising out a public request for bids for architectural services, for which Plaintiff Jeremy A. Gerami ("Plaintiff") submitted a timely bid and but which was cancelled by Defendant Montebello Unified School District ("Defendant" or "District"). The District moves for judgment on the pleadings.

The District requests judicial notice of the following documents: (1) Informal request for Bid ("IRFB") No. 16; (2) IRFB No. 40; (3) IRFB No. 71; (4) Notice of Cancellation of IRFB No. 16; (5) Notice of Cancellation of IRFB No. 40; (6) Notice of Cancellation of IRFB No. 71; and (7) Plaintiff's complaint filed on 5/27/26 in this action. The court grants the District's request for judicial notice except as to hearsay matters and matters subject to dispute pursuant to Evidence Code Section 452, subdivisions (d) and (h).

DISCUSSION

The District moves for judgment on the pleadings of the entire complaint on the grounds that: (1) Plaintiff failed to submit a government claim to the District; (2) The District cannot be liable for breach of contract because its governing board never approved and accepted

any contract; (3) The District's right to reject all bids precludes any claim of promissory estoppel; and (4) The District is immune from liability for its exercise of discretion to award a public contract or not.

Compliance with Government Claims Act

Public entities are protected by sovereign immunity for injuries arising from their acts or omissions, except as provided in the Government Claims Act or other statutes. The Act was conceived to strictly limit governmental liability. The District is a local public entity subject to the Act. A public entity's knowledge of an incident and injuries does not excuse the claim requirement. Thus, failure to allege facts demonstrating or excusing compliance with the claim presentation requirement subjects a claim against a public entity to a demurrer for failure to state a cause of action. Here, the complaint is devoid of any allegations that Plaintiff complied with the Government Claims Act pre-filing presentation requirements. (See generally, Compl., filed on 5/27/25.) The opposition concedes this point. (Opp. at 2:5-14.)

Existence of a Contract

Even assuming arguendo the complaint did allege sufficient facts demonstrating that Plaintiff complied with the Government Claims Act pre-filing presentation requirements, the complaint fails to allege a breach of implied contract action against the District.

The complaint alleges, among other things, that on or about November 18, 2024, Plaintiff submitted the only timely and compliant bid for IRFB No. 16, a District issued request for architectural services. (Compl., § IV, ¶1.) Plaintiff attended the mandatory job walk and complied fully with all solicitation requirements. Plaintiff relied on the District's conduct, including confirmation that Plaintiff's bid was valid and would be considered for award. (Compl., § IV, ¶¶1, 5; § V.) However, a school district acts through a board with powers limited both in scope and by the method of their exercise, and is bound by the action of its board only when the latter acts with respect to a matter within a power conferred and in conformance with required formalities. As such, a contract which has not been approved or ratified pursuant to the Education Code does not comply with the required formalities, and is unenforceable against the District. Until such time as a bid is accepted, there is no contractual relationship between the bidder and the entity.

The complaint does not allege that the District's board approved or ratified his bid to IRFB No. 16 such that his bid was accepted and formed a contractual relationship between Plaintiff and the District. In fact, the complaint merely alleges that Plaintiff was told that his bid was valid and would be considered for award, which indicates it had neither been accepted, approved, and/or ratified by the District's board. To the extent that Plaintiff contends that he can amend the complaint as to the contract formation defect, the IRFB No. 16 was cancelled. (RJN Decl., ¶6, Ex. 4.) Likewise, the IRFB No. 71 was also cancelled by the District. (Id., ¶8, Ex. 6.) Allegations which are contradicted by the express terms of an exhibit incorporated into the complaint are disregarded by the court. Therefore, Plaintiff has failed to demonstrate that he could properly amend his breach of implied contract claim.

The Right to Reject Bids

Promissory estoppel as a substitute for a formal contract requires a promise by one party upon which another justifiably relies. In response to Plaintiff's contention that the District's implied representation to consider the bids constituted a promise to award the contract, such an implied representation would be contrary to the rule that allows a public body where it has expressly reserved the right to reject all bids, to do so for any reason and at any time before it accepts a bid.

Plaintiff's circumstances are analogous to *Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, because the complaint alleges that Plaintiff reasonably relied on the District's acknowledgment of his bid being valid and the sole proposal. (Compl., § V, ¶2.) The District's conduct induced Plaintiff to expend time, resources, and turn away other work. (Id.) The District's subsequent reversal caused foreseeable and measurable harm to Plaintiff. (Id.) However, the complaint merely alleges that the District confirmed that Plaintiff's bid would be considered for award. (Id., § IV, ¶¶1, 5; § V.) As noted above, the complaint expressly incorporated the IRFB No. 16 by reference. (Id., § I; § IV, ¶¶1, 4c; § V, ¶3.) According to IRFB No. 16, "The District reserves the right to reject any and all responses, to contract work with whomever and in whatever manner the District decides, to abandon the purchase entirely and to waive any informality or non-substantive irregularity as the interest of the District may require and to be the sole judge of the selection process. The District also reserves the right to negotiate separately

in any manner to serve its best interest.” (RJN Decl., ¶3, Ex. 1 – Ex. A at p. 7.) Contrarily, the complaint does not allege any facts showing that the District did more than merely confirm consideration of Plaintiff’s bid such as approve, ratify, and/or affirmatively accept his bid. Moreover, Plaintiff fails to show that he can plead facts on amendment that would cure this defect.

Government Immunity

“A public entity is not liable for an injury caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked.” (Gov. Code, § 818.4.) The complaint alleges that the District is expected to rely on a general clause in IRFB No. 16 reserving the right to cancel the bid process, however, such a clause does not shield the District from liability when the cancellation was not neutral, but triggered by a second, late bid that was improperly invited after bid tabulations were posted. (Compl., § V, ¶3.) Plaintiff alleges the right to cancel cannot be used as cover for procedural manipulation, bid shopping, or unequal treatment of vendors. (Id.) Furthermore, Plaintiff argues that the District’s immunity argument assumes that every allegation in the Complaint falls within the scope of discretionary immunity without addressing whether all of the alleged conduct is protected under the statutes cited. (Opp. at 8:14-17.) Plaintiff also contends that the District fails to demonstrate that amendment would be necessarily futile. (Id. at 8:22-28.)

The burden of proof regarding the possibility of amendment is on Plaintiff not the District. Plaintiff fails to show that amendment would not be futile in pleading around the government immunity defense.

CONCLUSION

The court grants without leave to amend Defendant Montebello Unified School District’s motion for judgment on the pleadings.

Defendant Montebello Unified School District shall give notice.